



January 27, 2026

Senator Claudia Kauffman
Chair, Committee on Business, Trade &
Economic Development
Washington State Senate
218 John A. Cherberg Building
P.O. Box 40466
Olympia, WA 98504-0466

Senator Perry Dozier
Ranking Member, Committee on Business,
Trade & Economic Development
Washington State Senate
342 Irv Newhouse Building
P.O. Box 40466
Olympia, WA 98504-0466

Senator Adrian Cortes
Vice Chair, Committee on Business, Trade &
Economic Development
Washington State Senate
411 Legislative Building
P.O. Box 40466
Olympia, WA 98504-0466

RE: SB 5976 – SUPPORT

Dear Chair Kauffman, Vice Chair Cortes, Ranking Member Dozier, and Members of the Committee:

On behalf of the advertising and marketing industry, we write in support of SB 5976. SB 5976 would restore the original statutory intent of the Washington Consumer Electronic Mail Act (CEMA) concerning commercial email subject lines and put a halt to numerous out-of-state lawsuits seeking multi-million dollar settlements from Washington state companies and companies doing business in Washington state. We ask that you advance the bill out of the Senate Committee on Business, Trade & Economic Development.

As the nation's leading advertising and marketing trade associations, we collectively represent thousands of companies across the country. These companies range from small businesses to household brands, advertising agencies, and technology providers. Our combined membership includes more than 2,000 companies, which accounted for nearly 20 percent of total U.S. gross domestic product (GDP) in 2024.¹ By one estimate, approximately 18.6% of Washington jobs in 2024 were supported by the advertising and marketing industry, a share projected to increase to 20.0% by 2029.²

¹ S&P Global, THE ECONOMIC IMPACT OF ADVERTISING ON THE US ECONOMY, 2024-2029 at 4 (Aug. 2025), located at https://theadcoalition.com/wp-content/uploads/2025/08/TAC_SP-Global-Final-Report_August-2025.pdf.

² *Id.* at 15-16.

Many of our members conduct email marketing to consumers in Washington state and are concerned with the rising number of lawsuits filed since the state Supreme Court interpreted CEMA to prohibit commercial emails containing “any false or misleading information in the subject line.” Prior to its decision in *Brown v. Old Navy, LLC*, 567 P.3d 38 (Wash. 2025), courts had interpreted CEMA to prohibit false or misleading information in the subject line as to the nature of the email as an advertisement. In essence, the Court interpreted CEMA to prohibit commonplace marketing language in subject lines, such as mentions of discounts, sales, or product availability. This expansive view of CEMA has led to a dramatic increase in the number of class action lawsuits against email marketers, with numerous retailers operating in the state targeted.

SB 5976 would restore CEMA to its original purpose. It would align the text of CEMA with its statutory intent, ensures statutory damages apply only when a consumer is actually harmed, keeps strong protections in place for emails that truly deceive consumers, and stops abusive class action litigation targeting routine marketing language in email subject lines.

Should SB 5976 fail to pass, it is our concern that our members will be exposed to additional multi-million dollar lawsuits in Washington state for what is widely understood to be ordinary marketing practice. This situation would be untenable for anyone doing email marketing in the state.

We therefore respectfully urge the committee to support SB 5976.

Thank you for your consideration of our views.

Sincerely,

Christopher Oswald
Group EVP and Head of Law, Ethics &
Government Relations
Association of National Advertisers (ANA)
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Clark Rector
Executive VP—Government Affairs
American Advertising Federation (AAF)
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Executive Vice President, Head of Public
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Interactive Advertising Bureau (IAB)
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CC: Members of the Committee on Business, Trade & Economic Development